

Superior Court of the State of California  
County of Orange  
TENTATIVE RULINGS FOR DEPARTMENT NAME  
**HON. YOLANDA V. TORRES**

**Date: August 3, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4<sup>th</sup> 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at [www.occourts.org](http://www.occourts.org).

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| 1 | <b>Abdolhosseinzadeh v. Logan</b><br><br><b>2024-01406249</b><br><br><b>Demurrer to 2<sup>nd</sup> Amended Complaint</b><br><br><b>Motion to Strike Portions of 2<sup>nd</sup> Amended Complaint</b><br><br><b>CMC</b> | <p>Defendant Dwayne K. Logan, M.D.'s demurrer to the Second Amended Complaint ("SAC") filed by plaintiff Hossein Abdolhosseinzadeh is <b>OVERRULED</b>.</p> <p><b>Second Cause of Action for Battery:</b></p> <p>The elements of a medical battery are: (1) the defendant performed a medical procedure without the plaintiff's consent; (2) the plaintiff was harmed; and (3) the defendant's conduct was a substantial factor in causing plaintiff's harm. (CACI No. 530A; <i>Ashcraft v. King</i> (1991) 228 Cal.App.3d 604, 611 (<i>Ashcraft</i>).) Battery requires an intentional and unauthorized touching by the defendant. (<i>Ashcraft, supra</i>, 228 Cal.App.3d at p. 611.)</p> <p>"The battery theory should be reserved for the circumstances when a doctor performs an operation to which the patient has not consented. When the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present. However, when the patient's consent to certain treatment and the doctor performs that treatment but an undisclosed inherent</p> |
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|  | <p>complication with a low probability occurs, no intentional deviation from the consent given appears; rather, the doctor in obtaining consent may have failed to meet his due care duty to disclose pertinent information. In that situation the action would be pleaded in negligence.” (<i>Cobbs v. Grant</i> (1972) 8 Cal. 3d 229, 240-241.)</p> <p>The SAC alleges Plaintiff consented to Defendant performing eye surgery to place a Toric cornea lens in Plaintiff’s right eye but did not consent to placement of a non-Toric cornea lens. (SAC, ¶¶ 22-23.) Plaintiff further alleges the placement of a Toric lens was a “condition of obtaining Plaintiff’s consent.” (SAC, ¶ 23.) The allegations in the SAC are sufficient at the pleading stage to allege a battery cause of action.</p> <p>Therefore, the demurrer to the second cause of action is <b>OVERRULED.</b></p> <p><b>Fourth Cause of Action for Breach of Contract:</b></p> <p>The elements of a cause of action for breach of contract are: (1) the existence of a contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) resulting damages. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.)</p> <p>The SAC alleges that Plaintiff entered into an oral contract with Defendant to perform eye surgery. (SAC, ¶ 35.) The contract provided for Plaintiff to pay for an upgrade to a Toric lens and Plaintiff paid \$2,850 to Defendant. (SAC, ¶ 35.) Defendant breached the contract by failing to implant the Toric lens and as a result Plaintiff has suffered damages. (SAC, ¶ 36-38.) These allegations are sufficient to allege breach of contract.</p> <p>Therefore, the demurrer to the fourth cause of action is <b>OVERRULED.</b></p> <p>Moving party to give notice.</p> <p><b>MOTION NO. 2:</b></p> <p>Defendant Dwayne K. Logan, M.D.’s motion to strike portions of the Second Amended Complaint filed by plaintiff Hossein Abdolhosseinzadeh is <b>GRANTED.</b></p> <p>Defendant seeks to strike the request for prejudgment interest.</p> <p>Civil Code section 3287 provides for a person to recover prejudgment interest when damages are “certain, or capable</p> |
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|   |                                                                                                                                                                                                                                                                                | <p>of being made certain by calculation ...." (Civ. Code, § 3287(a).)</p> <p>Prejudgment interest " `is awarded only when the sum is liquidated within the meaning of the statute.' [Citation.]" (<i>Duale v. Mercedes-Benz USA, LLC</i> (2007) 148 Cal.App.4th 718, 728.) Damages are deemed certain or capable being made certain within the meaning of the statute where there is essentially no dispute between the parties concerning the basis of computation of damages if they are recoverable but where their dispute centers on the issue of liability giving rise to damage. (<i>Id.</i> at p. 729.) Where the amount of damages cannot be resolved except by verdict or judgment, prejudgment interest is not appropriate. (<i>Ibid.</i>)</p> <p>Here, damages are not certain or capable of being made certain prior to trial.</p> <p>Moving party to give notice.</p>                              |
| 3 | <p><b>Cavalli v. Hanken</b></p> <p><b>2025-01513300</b></p> <p><b>Motion to be relieved as counsel as to Nazila Safavi</b></p> <p><b>CMC</b></p>                                                                                                                               | <p>The motion of attorney Scott Aval of Avrek Law Firm to withdraw as attorney of record for Plaintiff Nazila Safavi is GRANTED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.)</p> <p>Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client.</p> <p>Moving attorney is to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 4 | <p><b>L. v. Flores-Rivas</b></p> <p>2022-01259553</p> <p>Motion to be relieved as counsel as to N.L</p> <p>Motion to be relieved as to Susana Hurtado, GAL for F.Z.</p> <p>Motion to be relieved as to Susana Hurtado GAL for J.A.</p> <p>OSC re Dismissal on Settled case</p> | <p><b>MOTION No.1:</b></p> <p>The motion of attorney Stephen A. Madoni from Law Office of Stephen A. Madoni, PLC to be relieved as counsel of record for plaintiff N.L. is <b>GRANTED</b>.</p> <p>Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362.</p> <p>Moving attorney is ORDERED to give notice to client, and file proof of service of the court's order as entered.</p> <p>Withdrawal will be effective upon filing of proof of service of the order.</p> <p><b>MOTION NO. 2:</b></p> <p>The motion of attorney Stephen A. Madoni from Law Office of Stephen A. Madoni, PLC to be relieved as counsel of record for plaintiff F.Z., a minor by and through her Guardian ad Litem, Susana Hurtado, is <b>GRANTED</b>.</p> <p>Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362.</p> |